

PLE5022: FOUNDATIONS IN MAINLAND RELATED LEGAL TRANSACTIONS

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Foundations in Mainland Related Legal Transactions

Subject Code

PLE - Professional Legal Education

Course Number

5022

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

Non-standard Duration

Other Course Duration

Semester B (9 weeks)

Credit Units

2

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

The aim of Foundations in Mainland Related Legal Transactions is to enable students to practise, at a basic level, as a lawyer in Hong Kong in relation to Mainland China-related commercial transactions.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	advise a client in Hong Kong on a range of Mainland China-related real-life commercial transactions, through an analytical and critical examination of the proposed transactions which seeks a creative and solution-focused outcome for the client while remaining fully compliant with all applicable laws		x	x	x
2	liaise and work with a Mainland Chinese lawyer on each of the transactions to achieve a legal, creative, and solution-focused outcome		x	x	x
3	perform their role as Hong Kong lawyers in the transactions		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	1	Lectures in large groups, followed by small group sessions based on given scenarios and selected topics.	1, 2, 3	3 hours

Continuous Assessment (%)

0

Examination (%)

100

Examination Duration (Hours)

3

Minimum Examination Passing Requirement (%)

50

Additional Information for ATs

A three-hour series of practical exercises conducted under examination conditions (CILO No. 1,2,3). The use of Generative AI tools is not allowed.

Assessment Rubrics (AR)

Assessment Task

A three-hour series of practical exercises conducted under examination conditions.

Criterion

To pass this course, students must obtain an aggregate mark of 50%.

Excellent

(A+, A, A-) The work meets the client' s needs in all respects, evidenced by:

- a superior grasp of the issues and subject matter
- good organization
- a capacity to analyze and synthesize
- possession of an extensive knowledge base
- a superior use of lawyer skills.

Good

(B+, B, B-) The work meets the client' s needs in most respects, evidenced by:

- a strong grasp of the issues and subject matter
- some critical and analytical ability
- an understanding of the applicable law and procedures
- a good use of lawyer skills.

Fair

(C+, C, C-*) The work meets the client' s main needs, evidenced by:

- an adequate grasp of the issues and subject matter
- an ability to develop solutions to the client' s problems
- a basic use of lawyer skills.

Marginal

(D*)

Failure

(F) The work does not meet the client' s needs, evidenced by little or an insufficient:

- grasp of the issues and subject matter
- critical and analytical ability
- understanding of the applicable law and procedures.

Additional Information for AR

*Note: The University's grades C- and D are not used in the PCLL.

Part III Other Information

Keyword Syllabus

- Legal Environment in Mainland China
- Foreign Direct Investment in Mainland China
- Mergers and Acquisitions in Mainland China
- Operating in Mainland China

- Mainland China-Related Financing Activities
- Outbound Investment by Firms from Mainland China
- Exit Strategies and Dispute Resolutions in Mainland China

Reading List

Compulsory Readings

Title	
1	Follow press reports/Mainland China law firm releases on the latest legal and economic developments in Mainland China (including those on new laws and regulations)

Additional Readings

Title	
1	Additional reading lists will be provided in the lecture notes.